

Court No. - 40

Case :- WRIT - C No. - 34961 of 2023

Petitioner :- Mahelaqa

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Ram Manohar Narayan Mishra,J.

1. Heard learned counsel for the petitioner and learned counsel holding brief of Shri N.K. Tiwari, learned counsel for the respondents-Power Corporation.

2. Present writ petition has been preferred for quashing the impugned bill dated 31.1.2022 (Annexure No.5) issued by the Executive Engineer, Electricity Urban Distribution Division, Meohall, Prayagraj-respondent no.2 and for a direction to respondent no.2 to prepare the bill in the light of Clause 5.6 of U.P. Electricity Supply Code, 2005 (in short "the Code").

3. At the very outset, learned counsel for the respondent-Power Corporation has raised objection regarding the maintainability of the writ petition on the ground that the petitioner cannot assail the validity of the impugned bill dated 31.1.2022 at this belated stage and as such the said relief is liable to be rejected on the ground of delay and laches.

4. Learned counsel for the petitioner states that since issuance of impugned bill, the petitioner has deposited the substantial amount and till date the application of the petitioner in view of Clause 5.6 of the Code has not been addressed by the competent authority.

5. Considering the facts and circumstances of the case, without expressing any opinion on merits of the issue and with the consent, the writ petition stands **disposed of** with observation that in case the aforesaid application of the petitioner under Clause 5.6 of the Code is pending consideration, the same shall be considered and decided in accordance with law expeditiously and preferably within six weeks from the date of production of certified copy of this order.

Order Date :- 8.12.2023

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